FREE LEGAL GUIDE #1

Emergency Bail Guide

First 24 Hours After Arrest

What to do — and what NOT to do —
when someone you know is arrested in India

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Emergency Bail: What to Do in the First 24 Hours

When a family member is arrested, the first 24 hours are the most critical window. Decisions made in this period — who to call, what to say, whether and how to apply for bail — can significantly shape the outcome of the case. This guide walks you through each step under the Bharatiya Nagarik Suraksha Sanhita (BNSS) 2023.

> Every arrested person has guaranteed constitutional and statutory rights. These rights apply regardless of the nature of the alleged offence. Knowing them — and acting on them quickly — is essential.

STEP-BY-STEP: THE FIRST 24 HOURS

Step 1 — Confirm the Arrest and Location

Contact the police station in whose jurisdiction the arrest occurred. Under Section 47 BNSS, the arresting officer must prepare an arrest memo and inform the accused's nominated person. If this has not happened, note it — your lawyer can use this as a violation of procedure.

Step 2 — Do NOT Offer Money to Police Officers

Never attempt an informal payment or bribe. This is an offence under Section 7 of the Prevention of Corruption Act and can create additional criminal liability for you and the accused.

Step 3 — Contact a Criminal Lawyer Immediately

Under Article 22 of the Constitution and Section 302 BNSS, the arrested person has the right to be defended by an advocate of their choice. Contact a lawyer before the accused is produced before a magistrate — ideally within the first 2-3 hours.

Step 4 — Track the 24-Hour Production Deadline

Under Section 57 BNSS, police cannot detain a person for more than 24 hours without producing them before a magistrate. Note the exact time of arrest. If the deadline is missed, your lawyer can move immediately for release on this ground alone.

Step 5 — Obtain a Copy of the FIR

You are entitled to a free copy of the FIR under Section 173 BNSS. Request this from the station house officer (SHO). The FIR is critical for preparing a bail application and understanding the exact charges.

Step 6 — Arrange a Surety / Guarantor

For bailable offences, bail is a matter of right and requires a personal bond and a surety. Identify a reliable person (employed, with ID proof) who can stand as surety. For non-bailable

offences, the court has discretion and the lawyer will advise accordingly.

YOUR LEGAL RIGHTS ON ARREST — BNSS 2023

● Right to Know the Grounds of Arrest — Section 47 BNSS

Police must inform you of the reason for arrest at the time of arrest. An arrest memo must be prepared and signed by a witness. If you are not told the grounds, ask — and note if refused.

● Right to Inform a Relative or Friend — Section 47(2) BNSS

You have the right to have a nominated person informed of your arrest and place of detention. This person should be your lawyer, family member, or a trusted contact.

● Right to Legal Representation — Article 22(1) Constitution

You cannot be denied the right to consult an advocate. If you cannot afford one, a Legal Aid lawyer will be appointed under Section 304 BNSS (formerly Section 303 CrPC).

● Right Against Torture — Section 49 BNSS + DK Basu Guidelines (Codified)

No unnecessary restraint, force, or ill-treatment during arrest or custody. Any physical harm in custody is punishable. The arresting officer must bear an accurate, visible name tag.

● Right to Medical Examination — Section 51 BNSS

You may request a medical examination by a registered medical practitioner immediately after arrest. This is critical if there is any existing injury, illness, or health concern.

● Right to Silence

You are not obligated to answer police questions beyond confirming your identity. Under Article 20(3) of the Constitution, no one can be compelled to be a witness against themselves. Do not make any statement without your lawyer present.

TYPES OF BAIL UNDER BNSS 2023

Type of Bail	When to Apply	Court
Regular Bail (Section 480 BNSS)	After arrest — bailable or non-bailable offences	Magistrate Court or Sessions Court
Anticipatory Bail (Section 482 BNSS)	Before arrest — when arrest is apprehended	Sessions Court or Bombay High Court
Default Bail (Section 479 BNSS)	If chargesheet not filed within statutory deadline	Magistrate Court
Interim Bail	Emergency short-term bail pending full hearing	Any competent court

WHAT NOT TO DO

✗ Do NOT sign any document — confession, statement, or bond — without consulting a lawyer

✗ Do NOT speak to journalists or share details on social media about the arrest

✗ Do NOT attempt to destroy, hide, or tamper with any evidence — this creates additional charges

✗ Do NOT trust 'fixers' or touts who claim to have influence with police or courts

✗ Do NOT ignore the 24-hour production deadline — this is a hard legal limit

✗ Do NOT attend the police station without a lawyer if you can possibly avoid it

✗ Do NOT make audio/video calls near police or in lock-up without legal advice

FIRST 24 HOURS CHECKLIST

■ Confirm police station name and the sections under which the FIR is registered

■ Note exact time and date of arrest

■ Contact a criminal lawyer within the first 2-3 hours

■ Obtain a copy of the FIR

■ Do not make any statement to police without a lawyer

■ Request medical examination if there are any health concerns

■ Identify a surety/guarantor — employed adult with Aadhaar/PAN

■ Attend bail hearing on time with all required documents

In bailable offences, bail is a right — not a favour. Even in non-bailable offences, courts have wide discretion. An experienced criminal advocate filing a well-prepared bail application at the right court makes a material difference.

Need Legal Help? Contact Us Now

Your defence begins the moment you contact us.

Emergency consultations available 7 days a week.

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